

#	Case Name	Tentative
50	<i>Amjadi vs. Jolly Berry Law</i>	<i>Motion is off calendar</i> <i>CMC remains on calendar</i>
51	<i>Berkowitz vs. Pelagic, Inc.</i>	<i>Motion is off calendar</i> <i>CMC remains on calendar</i>
52	<i>Escobedo vs. Hyundai Motor America</i>	Defendant moves, under CCP section 397, subdivisions (a) and (c), for an order transferring this case to Imperial County Superior Court. (ROA 24.) The court “has discretionary power to transfer the case to any other county ‘[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.’” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 3:553, citing Code Civ. Proc. § 397, subd. (c); <i>Rycz v. Sup.Ct.</i> (2022) 81 Cal.App.5th 824, 836.) In support of its motion, Defendant proffers a declaration from its counsel, whereby counsel attests that the subject sales contract arose in Imperial County, where Plaintiff Arturo Escobedo purchased the subject vehicle from the Imperial Valley Hyundai dealership, which is located at 634 Thomas Lane, El Centro, CA 92243. (ROA 25 [Kurtz Decl. at ¶¶ 2, 4, Exh. A].) The declarant also proffers a copy of the subject vehicle’s repair service history, which reflects that all repairs and/or servicing was performed at the same Imperial Valley Hyundai dealership. (Kurtz Decl. at ¶ 3, Exh. B.) Based on the uncontroverted evidence, the Court finds Orange County is not a “convenient” venue for the witnesses who the parties would reasonably be expected to call. The Court finds the convenience of these witnesses would be best served by transferring this action to the county where the dealership is located, and where the repairs and/or

		servicing took place. (See <i>Rycz v. Superior Court of San Francisco County</i> (2022) 81 Cal.App.5th 824, 837.) Defendant Hyundai Motor America’s (“Defendant”) motion to transfer venue is therefore GRANTED. Defendant is responsible for payment of the fees and costs associated with the transfer. (Code Civ. Proc., § 399, subd. (a).) Defendant is ordered pay the transfer fees and costs within 5 days, if they have not already been paid. Within 10 days, Defendant is to submit a proposed order for the Court’s signature. The order must contain at least the following statements: (1) the Court orders this matter be transferred to the Superior Court of California for the County of Imperial upon payment of all the necessary fees required by law; (2) the basis of the transfer is because Imperial County is a more “convenient” venue for this action; (3) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; and, (4) the court, division, and address where the case is being transferred. (Code Civ. Proc., § 399, subd. (a).) The case management conference scheduled for 06/26/26 is VACATED. Defendant shall give notice of the ruling.
53	<i>First Staffing Group, LLC vs. DTS Electric, Inc.</i>	Plaintiff First Staffing Group, Inc.’s (“Plaintiff”) unopposed motion for summary judgment on its Complaint against defendant DTS Electric, Inc. (“Defendant”) is GRANTED. <u>Legal Standard</u>